REPUBLIC OF THE PHILIPPINES
CITY OF DAVAO
OFFICE OF THE SANGGUNIANG PANLUNGSOD

Ordinance No. 0310-07 & 2015 Mining Ban Ordinance

THE DAVAO CITY WATERSHED PROTECTION AND MINING BAN ORDINANCE

BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD OF DAVAO CITY, IN SESSION ASSEMBLED, THAT:

SECTION 1. TITLE. — This Ordinance shall be known as the 'Davao City Watershed Protection and Mining Ban Ordinance'.

SECTION 2. TOTAL MINING BAN. — No mining operations of any nature, whether large-scale or small-scale, shall be permitted anywhere within the territorial jurisdiction of Davao City. The City Mayor shall refuse to issue business permits or Mayor's clearances to any entity holding national mineral agreements (MPSAs) from the national government.

SECTION 3. PROTECTION OF PANIGAN-TAMUGAN WATERSHED. — The Panigan-Tamugan recharge basin is declared an environmentally critical zone closed to all industrial extraction, quarrying, and mineral exploration activities.

SECTION 4. PENAL SANCTIONS. — Violators shall be penalized with a fine of Five Thousand Pesos (P5,000.00) or imprisonment for one (1) year, or both, plus revocation of municipal permits.

SECTION 5. SEPARABILITY AND EFFECTIVITY. — This Ordinance shall take effect immediately upon enactment and publication.